

Venus Sugar Ltd v. Paschimanchal Vidyutvitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 12 May 2023 · 2023:AHC:103126-DB · WRIT - C No. - 16181 of 2023 · **Disposed; fresh order directed under Supply Code procedure.**

HEADNOTE

Writ against an order deciding an objection to an electricity-arrears demand disposed of after the licensee withdrew that order and undertook to decide afresh after hearing. The fresh order must be passed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Venus Sugar Ltd filed a writ against the order dated 29 April 2023 by which respondent no. 2 decided its objection to a demand notice for arrears of electricity charges issued by Paschimanchal Vidyutvitran Nigam Limited. Counsel for the electricity department told the Allahabad High Court that the impugned order had been withdrawn and that the respondents would pass a fresh order after hearing the petitioner. A personal hearing stood fixed for 30 May 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Fresh order on objection to electricity-arrears demand

HOLDING

Where the licensee withdraws the order deciding a consumer's objection to a demand for electricity arrears and undertakes to pass a fresh order after hearing, nothing further survives in the writ. The fresh order must be passed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

¶ 2-4

FLAG No numbered clause is cited; the order refers only to the procedure prescribed under the Code.

PRINCIPLE TAGS

UP-2005::procedure The respondents, having withdrawn the order on the petitioner's objection to the arrears demand, must pass the fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, after the personal hearing fixed for 30 May 2023. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE FOR ARREARS OF ELECTRICITY CHARGES WAS SUSTAINABLE

Left open for the fresh order after the hearing fixed for 30 May 2023. ¶ 1-3